

New EBA guidelines expand scope to include crypto-asset confidentiality rules

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Compliance

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On 22 December 2025, the European Banking Authority (**EBA**) issued updated guidelines amending the existing framework (EBA/GL/2022/04) on the equivalence of confidentiality regimes. These amendments aim to ensure that third-country confidentiality and professional secrecy frameworks align with EU standards, which is a prerequisite for sharing confidential information with third-country authorities.

Key highlights:

Scope expansion: The EBA has expanded the scope of its Equivalence Guidelines to create a more consistent framework for how EU national regulators cooperate with supervisory authorities in non-EU countries. The Guidelines now incorporate confidentiality and professional secrecy provisions under Regulation (EU) 2023/1114 (**MiCAR**), which governs markets in crypto-assets. This includes updated definitions and scope for competent authorities engaging with third-country authorities.

Equivalence assessments: The EBA has evaluated and confirmed the equivalence of confidentiality regimes for several third-country authorities, including:

- **Australia:** Australian Transaction Reports and Analysis Centre (**AUSTRAC**)
- **China:** National Financial Regulatory Administration (**NFRA**)
- **Montenegro:** Central Bank of Montenegro
- **Peru:** Superintendency of Bank, Insurance, and Pension Fund Administrators



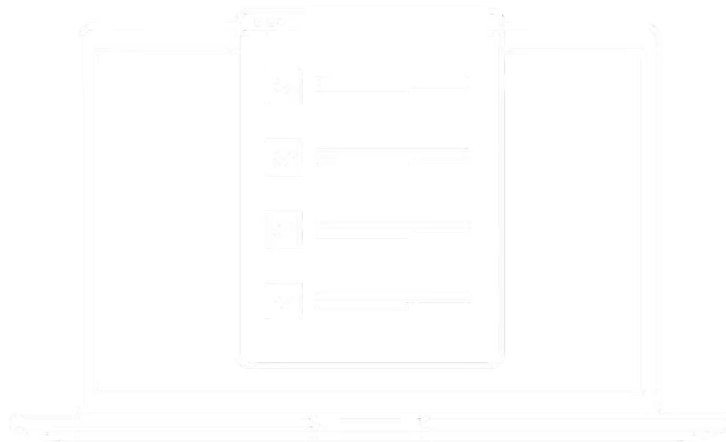
■ **Serbia:** National Bank of Serbia

- **United Kingdom:** Financial Conduct Authority (**FCA**) and Prudential Regulation Authority (**PRA**)

Legal framework updates: The guidelines reflect changes in third-country legal frameworks and align with MiCAR requirements. They also clarify that these assessments do not address the need for cooperation arrangements or participation in supervisory colleges.

The guidelines will be translated into all official EU languages and published on the EBA website. Competent authorities must report compliance within two months of publication, with the guidelines becoming effective shortly thereafter.

The press release can be found [here](#) and the final report [here](#)



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Authors



Aki Corsoni-Husain

Global Head of Regulatory & Tax | Regulatory & Tax | London



Angelos Lanitis

Associate | Regulatory & Tax | Cyprus

